

to himself through the medium of his fiduciary character, he is accountable as a constructive trustee for those profits to his employer or other person whose interest he was bound to advance.

19. **Unauthorized fall of timber.**—Again, a constructive trust may arise under special instances in respect of waste. If a tenant for life commit *legal* waste by felling timber, the tenant of the first estate of *inheritance* at the time (though there be an intermediate life estate [and though there be a possibility of intermediate estates of inheritance coming into *esse* (*g*)] can recover the trees or damages (*h*), for even an intermediate tenant for life, though he be unimpeach- [*188] able of waste, * cannot claim the timber against the owner of the inheritance (*a*); and if the tenant for life commit *equitable* waste, the rule is the same, and the timber belongs to the owner of the first estate of inheritance, notwithstanding intermediate estates for life (*b*); and the wrongdoer is accountable for the proceeds, with interest at 4 per cent (*c*), without being allowed for repairs (*d*); but subject to the bar of the statute of limitations which begins to run from the time of the waste (*e*). It may happen, however, that the *wrongdoer is himself, at the time, the owner of the first estate of inheritance*, while intermediate estates of inheritance may arise in future; as in a limitation to A. for life, remainder to his first and other sons in tail, remainder to B. for life, remainder to his first and other sons in tail,

[(*g*) *Cavendish v. Mundy*, W. N. 1877, p. 198; *Simpson v. Simpson*, 3 L. R. Ir. 308.]

[(*h*) Formerly a court of law was the proper tribunal in which to sue for a recovery of the trees or for damages, and relief was given in equity only when the plaintiff asked for an account or injunction, *Gent v. Harrison*, Johns. 517; *Higginbotham v. Hawkins*, 7 L. R. Ch. App. 676; *Whitfield v. Brewit*, 2 P. Wms. 240; *Lee v. Allston*, 1 B. C. C. 194; 3 B. C. C. 38; and see *Seagram v. Knight*, 3 L. R. Eq. 398; 2 L. R. Ch. App. 628. But now by 36 & 37 Vict. c. 66, s. 24, the jurisdictions of Courts of Law and Equity have been assimilated.]

(*a*) See *Gent v. Harrison*, Johns. 517.

(*b*) *Rolt v. Somerville*, 3 Eq. C. Ab. 759; *Ormonde v. Kynersley*, 5 Mad. 369; 2 S. & S. 15; *Butler v. Kynnersley*, 2 Bligh, N. S. 385; 7 L. J. O. S. 150; *Lushington v. Boldero*, 15 Beav. 1; *Duke of Leeds v. Amherst*, 2 Ph. 117; *Honywood v. Honywood*, 18 L. R. Eq. 306.

(*c*) *Garth v. Cotton*, 3 Atk. 751.

(*d*) *Whitfield v. Bewit*, 2 P. Wms. 240.

(*e*) *Seagram v. Knight*, 3 L. R. Eq. 398; 2 L. R. Ch. App. 628; [*Simpson v. Simpson*, 3 L. R. Ir. 308;] and see *Higginbotham v. Hawkins*, 7 L. R. Ch. App. 676.